

NEW YORK SUPREME COURT
COUNTY OF KINGS

JAMES CERISIER,

Plaintiff,

-against-

THE CITY OF NEW YORK AND OFFICER
SAURABH SHAH,

Defendants.

SUMMONS**Index No:**

To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street New York,
New York 10007SAURABH SHAH
Equipment Section
1 Police Plaza
New York, NY 10038

Dated: New York, New York
February 6, 2024

WERTHEIMER LLC

By: _____

Joel A. Wertheimer
Mara Fleder
14 Wall Street, Suite 1603
New York, New York 10005
(646) 720-1098
joel@joelwertheimer.com

NEW YORK SUPREME COURT
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JAMES CERISIER,

Plaintiff,

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Defendants.

COMPLAINT**Index No:****PRELIMINARY STATEMENT**

1. The morning of January 28, 2019, started like many others for James Cerisier: he woke up early, got ready for work, and began to drive into lower Manhattan from his home in Flatbush, Brooklyn. He had no idea that, just some minutes later, he would be staring down the barrel of a reckless police officer's gun – simply for being an African-American man driving a luxury vehicle.

2. As Mr. Cerisier drove up the Brooklyn-Queens Expressway, Officer Saurabh Shah, who was on-foot, waved him down, signaling for Mr. Cerisier to pull over.

3. Mr. Cerisier saw Officer Shah's hand signal and began to pull over to the extent possible, given traffic conditions. Seconds later, Officer Shah drew his weapon and pointed it directly at Mr. Cerisier – without any reason, and in the middle of a crowded street. Officer Shah, mere feet from Mr. Cerisier's car, barked "Move it!"

and trained his gun on Mr. Cerisier.

4. Mr. Cerisier, fearing for his life, opened his hands on the steering wheel to show Officer Shah he was unarmed. Officer Shah, standing in the middle of the expressway, blocked traffic and stopping traffic around them—further preventing Mr. Cerisier from pulling over.

5. Mr. Cerisier sat in the car, inching to the shoulder as traffic would allow, face-to-face with Officer Shah's gun. Officer Shah only lowered his gun when he noticed Mr. Shah's Department of Education parking permit on his dashboard.

6. Mr. Cerisier, still stunned, built up the courage to ask Officer Shah why he pulled his gun out. Officer Shah's response? "You see what goes on on TV." Officer Shah then simply drove off, without an apology and without issuing Mr. Cerisier a ticket, a summons, or even a verbal warning.

7. Mr. Cerisier's situation did, unfortunately, mirror "what goes on on TV": needless escalation of minor traffic stops into life-threatening situations for many African-Americans, often with tragic consequences. But for an arbitrary marker of his "respectability," James Cerisier may well have joined the ranks of Philando Castile or Samuel DuBose as a black life cut short at a traffic stop.

THE PARTIES

8. Plaintiff James Cerisier is a citizen of the United States and at all relevant times was a resident of Brooklyn, New York.

9. Defendant New York City Police Department ("NYPD") Officer Saurabh Shah was, at all times relevant to this Complaint, a police officer employed by

the City of New York. In this role, Officer Shah was a duly appointed and acting officer, servant, employee and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

10. Defendant City of New York (the “City”) is a municipal corporation duly organized under the laws of the State of New York. At all times relevant hereto, the City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters, including the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the City was responsible for enforcing the rules of the NYPD and for ensuring that NYPD personnel, including Officer Shah, obey the laws of the United States and of the State of New York.

JURISDICTION AND VENUE

11. This action arises under the laws of the State and City of New York.

12. Venue is proper in this court as the events took place in Kings County.

JURY DEMAND

13. Plaintiff demands trial by jury.

FACTUAL ALLEGATIONS

Officer Shah Threatens to Kill Mr. Cerisier

14. On the morning of January 28, 2019, Plaintiff James Cerisier was driving along the Brooklyn-Queens Expressway (“BQE”) from his home in the Flatbush neighborhood of Brooklyn into Manhattan for a citywide meeting being held by his

employer, the New York City Department of Education (“DOE”).

15. Mr. Cerisier, a tall African-American man, is a senior employee of DOE, in charge of supervising operations at several New York City public schools. He drives a white Mercedes-Benz sedan.

16. Mr. Cerisier was moving slowly, driving well below the posted speed limit.

17. As he drove north in the middle lane of the BQE through the Red Hook neighborhood of Brooklyn, Mr. Cerisier approached a fork; by steering onto a ramp to the right, he could enter Manhattan by taking the Brooklyn Bridge, while steering left would take him off the BQE and through the Hugh L. Carey Tunnel.

18. Mr. Cerisier decided to travel over the Brooklyn Bridge and turned on his turn signal. He began to merge into the right lane to continue onto the ramp towards the Brooklyn Bridge.

19. Officer Shah had parked his vehicle on the right shoulder of the BQE at this juncture, but was standing on the bank on the left side of the ramp towards the Brooklyn Bridge.

20. As Mr. Cerisier began to change lanes, Officer Shah signaled with his hands for Mr. Cerisier to pull over to the right shoulder.

21. Just seconds later, Officer Shah inexplicably escalated what should have been nothing more than a routine traffic stop. He entered the street, walked up to the front of Mr. Cerisier’s car, and drew his firearm, pointing it directly at Mr. Cerisier through his windshield.

22. Officer Shah's weapon was fully loaded and operational.

23. Mr. Cerisier, separated from the barrel of Officer Shah's gun by little more than an inch of glass, feared for his life.

24. In an attempt to defuse the situation, Mr. Cerisier opened up his palms, but kept the base of his hands on the steering wheel, showing Officer Shah that his hands were empty.

25. Officer Shah, increasingly erratic and nervous, and now himself blocking traffic, screamed at Mr. Cerisier to "move it." He kept his gun trained on Mr. Cerisier's face as he guided Mr. Cerisier's car over to the shoulder.

26. Mr. Cerisier was able to pull over just in front of Officer Shah's car. He kept his hands open and on the top of his steering wheel for this entire time. He then took one hand off the steering wheel to roll down his driver's side window.

27. Officer Shah left the middle of the highway and walked over to the shoulder, approaching Mr. Cerisier's window.

28. As Officer Shah approached Mr. Cerisier's window, he observed for the first time an official DOE parking permit on Mr. Cerisier's dashboard.

29. Recognizing that he had misjudged Mr. Cerisier, Officer Shah finally put his gun away. He grew noticeably more relaxed, asked whether Mr. Cerisier worked for the City, then asked for some form of identification.

30. Mr. Cerisier confirmed that he was a DOE employee, and handed Officer Shah his DOE identification card. He asked Officer Shah why he had drawn his weapon, given the minor nature of the traffic stop.

31. Officer Shah responded: “You see what goes on on TV.”

32. Mr. Cerisier was too stunned to respond.

33. Officer Shah then handed Mr. Cerisier back his identification, walked back to his patrol car, and drove away. He never apologized to Mr. Cerisier, nor did he issue Mr. Cerisier a ticket, a summons, or any other notice indicating that he had done *anything wrong*.

Mr. Cerisier, Despite Being Traumatized, Attempts to Obtain Justice

34. With the ordeal finally over, Mr. Cerisier drove to his meeting, emotionally rattled, but alive. He told several of his colleagues about the experience. His colleagues observed that he appeared shaken, and advised him to take the day off from work.

35. Later that week, unable to shake the terror of the experience, Mr. Cerisier approached the 76th Precinct, where the stop had occurred, to report the incident.

36. At the 76th Precinct, Mr. Cerisier told desk officers that he wished to file a report. After a five-minute interview, a detective at the precinct told Mr. Cerisier that they could not help Mr. Cerisier without the name, shield number, precinct information, or other details about Officer Shah.

37. The following week, on February 4, 2019, Mr. Cerisier met with the Civilian Complaint Review Board (“CCRB”). He gave a statement to CCRB investigators, who advised him that they would keep him apprised of the status of the case.

38. Weeks later, CCRB investigators contacted Mr. Cerisier to schedule a second meeting. At that meeting, CCRB investigators showed Mr. Cerisier a photo array containing Officer Shah's photograph. Mr. Cerisier identified Officer Shah, but was not told his name at the time.

39. On June 26, 2019, Mr. Cerisier filed a petition in the Supreme Court of Kings County, seeking leave to serve a notice of claim on the City of New York. That petition was granted on July 26, 2019 and Plaintiff's notice of claim was deemed filed timely *nunc pro tunc*. More than thirty days have elapsed since the service of the notice, and adjustment or payment of Plaintiff's claim been neglected or refused.

40. The CCRB refused to provide Mr. Cerisier with any information about Officer Shah, instead offering only to provide mediation.

41. Through counsel, Plaintiff served a subpoena on the CCRB on November 20, 2019, seeking the officer's name. In response to Plaintiff's subpoena, the CCRB turned over Officer Shah's name.

42. Mr. Cerisier continues to suffer extreme anxiety as a result of this encounter; he fears that, simply by being an African-American man driving a luxury car, he may be shot by an overeager police officer.

43. He has nightmares about the experience, periodically waking up in cold sweats after reliving this day.

44. After receiving no help from the 76th Precinct or from the CCRB, Mr. Cerisier brought an action in Federal court seeking justice.

45. The Federal claims were ultimately dismissed by the Second

Circuit under the doctrine of qualified immunity.

46. The District Court declined to exercise supplemental jurisdiction over any state law claims possessed by Mr. Cerisier.

FIRST CAUSE OF ACTION
Common Law Assault (All Defendants)

47. Plaintiff repeats and realleges that above paragraph as if the same were fully set forth at length herein.

48. By reason of the foregoing, Officer Shah, acting in his capacity as a New York City Police Officer and within the scope of his employment as such, intentionally placed Plaintiff in apprehension of an imminent offensive contact and displayed the ability to effectuate such contact, and thereby committed a willful, unlawful, unwarranted, and intentional assault upon Plaintiff.

49. The assault committed by Officer Shah was unnecessary and unwarranted in the performance of his duties as an NYPD officer and constituted an unreasonable and excessive use of force.

50. The City, as the employer of Officer Shah, is liable for his use of excessive force against Plaintiff under the doctrine of *respondeat superior*.

51. As a direct and proximate result of Officer Shah's misconduct detailed above, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
ACTIONS BY VICTIMS OF VIOLENT CRIME
Section 10-401

52. Plaintiff repeats and realleges that above paragraph as if the same were fully set forth at length herein.

53. By reason of the foregoing, Officer Shah, acting in his capacity as a New York City Police Officer and within the scope of his employment as such, committed the violent crime of assault that presented a serious risk of physical injury when he pointed his weapon at Plaintiff without justification.

54. Under New York City Administrative Law 10-401 *et seq.*, Plaintiff has a claim against Mr. Shah as a victim of a violent crime, entitling him to damages and attorneys' fees.

THIRD CAUSE OF ACTION
Negligent Infliction of Emotional Distress

55. Plaintiff repeats and realleges that above paragraph as if the same were fully set forth at length herein.

56. Defendant Shah owed a duty of care to Plaintiff.

57. Defendant breached that duty when pointing his gun at Plaintiff in violation of departmental regulations.

58. Defendant Shah caused the Plaintiff to fear for his own physical safety.

59. Plaintiff suffers from emotional damages as a result.

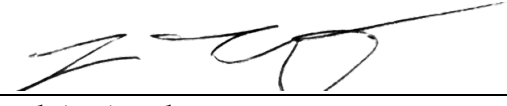
WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- a. Compensatory damages in an amount to be determined at trial;
- b. Punitive damages against Officer Shah in an amount to be determined at trial;
- c. Reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and

d. Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
February 6, 2024

WERTHEIMER LLC

By: 

Joel A. Wertheimer
Mara Fleder
14 Wall Street, Suite 1603
New York, New York 10005
(646) 720-1098
joel@joelwertheimer.com